

PREMIUM

Refusal Decision Guide

Understanding your refusal, and deciding whether and how to reapply

First, understand which kind of “no” you received

Outcome	What it means	Can you appeal it?
214(b) refusal	The officer wasn't convinced you overcame the presumption of immigrant intent. The most common outcome for weak applications.	No formal appeal exists. Your path forward is a fresh application once your circumstances genuinely support a stronger case.
221(g) notice	Not a refusal - your case needs more information or is in administrative processing. Temporary, pending status.	Nothing to appeal; follow the instructions on your notice and wait for or supply what's requested.
212(a) ineligibility	A specific legal ineligibility (e.g. certain past immigration or criminal history) applies. Less common for typical tourist applicants.	May require a waiver in some cases - this is a situation worth professional legal advice for.

There is no formal appeal for a 214(b) refusal

This is the single most important thing to understand. You cannot escalate a 214(b) refusal to a higher authority for review. The only realistic path forward is reapplying with a materially stronger case.

If you were refused under 214(b): what actually changes the outcome

Reapplying with the exact same application almost never produces a different result, because you're presenting the same evidence to the same standard. Before you reapply, honestly assess what's different:

- Has your employment situation strengthened (longer tenure, a promotion, a documented return-to-work date)?
- Have you addressed whatever seemed weak - unclear travel plans, thin financial evidence, an unexplained inconsistency?
- Has meaningful time passed, and can you show continuity (still employed, still enrolled, family circumstances unchanged) since the refusal?
- Can you clearly and briefly explain, if asked, what's different this time?

There's no fixed waiting period required before reapplying, but reapplying within days or weeks with nothing changed rarely helps and can reinforce the original concern.

What not to do

- Don't omit or misstate a previous refusal on a later DS-160 - it's checked against records, and the inconsistency is worse than the original refusal
- Don't apply under a different passport or identity to obscure a refusal history - this is immigration fraud and carries serious, long-term consequences well beyond a single visa denial
- Don't submit an identical reapplication expecting a different officer to see it differently - the refusal reason, not the individual officer, is usually what needs to change

When to consider professional legal advice

Most straightforward 214(b) refusals don't require a lawyer - a stronger, well-prepared reapplication is usually enough. Consider consulting a qualified immigration attorney if:

- You were refused under a ground other than 214(b) (e.g. a 212(a) ineligibility)
- You have a prior immigration violation you're unsure how to address
- You've been refused multiple times despite materially strengthening your case each time